

(*not dismissed*) pending the results of the arbitration.”).) Courts generally have jurisdiction to enforce their own orders and this case is no different.

Defendant gives no justification for why “justice and due process” require additional time, especially as Defendant apparently was capable of realizing this matter *was* still on calendar in advance of the hearing, but chose to ignore the Court’s deadline and file a belated brief statement.

The only evidence before this Court is that Gomes violated this Court’s orders. The Court will therefore impose sanctions in the amount of \$1,000 pursuant to Code of Civil Procedure section 1218. Plaintiffs may make further request for reasonable attorneys’ fees related to this contempt proceeding by motion.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-02652
CASE NAME: HONAKER VS. CHP OFFICER DONNIE THOMAS
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: CHP OFFICER DONNIE THOMAS

TENTATIVE RULING:

Defendants State of California acting by and through the California Highway Patrol (“State”) and Officer Donnie Thomas (“Officer Thomas”) move for summary judgment or, in the alternative, adjudication. The motion for summary judgment is **granted**, as discussed below. Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

I. Background

On December 13, 2021, plaintiff’s vehicle was rear ended by Renee Thomas, the spouse of Officer Thomas. Ms. Thomas called her husband, but told plaintiff she had summoned the police. Officer Thomas arrived on scene and collected plaintiff’s identification and insurance information, asking plaintiff questions about the incident, but refusing to make a report. He gave plaintiff a false name when she requested his name and badge number. Through a confusing series of phone calls to the Brentwood Police Department and Officer Thomas (through CHP dispatch), a police officer eventually arrived on scene and took an accident report. Officer Thomas told plaintiff he could not because it was a “conflict of interest.” Plaintiff made a civilian complaint against Officer Thomas on December 14, 2021 based on her contention that she feared for her safety during the interaction with Officer Thomas.

On December 13, 2022, plaintiff filed the present action against both Officer Thomas and the State, wherein she seeks recovery for (1) Unreasonable Seizure; (2) Unreasonable Search; (3) False Imprisonment; and (4) Intentional Infliction of Emotional Distress. (A demurrer was sustained to the fifth “negligence” cause of action.) (Second Amended Complaint, filed on 10/19/23; see also Minute Order dated 3/28/24.)

Just less than two years after the collision, on December 8, 2023, plaintiff filed a complaint for damages against Ms. Thomas and Officer Thomas for personal injury and property damage arising from the motor vehicle accident. Approximately one year ago, on April 17, 2025, plaintiff settled that

complaint by accepting a monetary settlement in exchange for a release of all claims. (Separate Statement of Undisputed Material Facts in Support of Motion, hereinafter "SSUMF," Fact. No. 3, and plaintiff's response.)

At the time of settlement, plaintiff was represented by counsel Justin L. Ward, the same attorney who had filed the complaint on her behalf. (SSUMF, Fact. No. 4, and plaintiff's response; see also Complaint filed 12/8/23.)

The settlement agreement contained the following text:

The Claimant, Marnique Honaker, for the sole consideration of the sum of Twenty-Six Thousand Dollars (\$26,000.00), hereby releases and forever discharges Donnie Thomas and Renee Thomas (hereinafter the "Released Party") and the Released Party's insurers, (Liberty Mutual Fire Insurance Company) (hereinafter called the "Company"), their heirs, executors, administrators, successors, agents, servants, employees and assigns, and all of their past and present related subsidiaries, parents, members, managers, affiliated corporations, and their agents, attorneys, dealers, employees, officers, members, directors, managers, governing body members, stockholders, shareholders, partners (both general and limited), sureties, successors, assigns, predecessors, servants, representatives; and all insurers and reinsurers of the persons, firms, property owners or entities in this definition and their agents, employees, attorneys, and representatives, from any and all claims for loss, damages, costs, contribution, indemnification, or any other thing whatsoever on account of, or in any way growing out of, all personal injuries, death, property damage and any other type of damage of any kind, whether now known or unknown, arising out of an accident or occurrence on Monday, December 13, 2021, at or near Brentwood, California ("the accident").

[...]

The Claimant acknowledges that this Release and Hold Harmless and Indemnification Agreement extends to all claims of any kind which the Claimant had or may have had against the parties released hereby, and that any party released hereby can raise this Release and Hold Harmless and Indemnification Agreement as a complete defense to any claim or suit by or on behalf of the Claimant.

[...]

All rights given by Section 1542 of the Civil Code of California, which is quoted below, are waived by the undersigned."

CA Civil Code section 1542:

A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."

(SSUMF, Fact. Nos. 5-7, and plaintiff's responses.)

When she signed this waiver, plaintiff was aware that she had another lawsuit pending against Officer Thomas arising from the same incident. (SSUMF, Fact. No. 8, and plaintiff's response.)

Defendants moved for summary judgment or summary adjudication in the alternative. The hearing was originally scheduled for April 23, 2026, but was continued to May 7, 2026 on an ex parte application by plaintiff. (Order filed 4/13/26.)

II. Motion and Opposition

Defendants argue that the settlement agreement is a complete defense to this action. Alternatively, defendants seek summary adjudication as to each cause of action based on the inability of plaintiff to show an essential element of each claim.

In support of the motion, defendants provide a declaration from counsel which attaches various litigation documents including plaintiff's responses to requests for admission, other documents provided in discovery, a search log to indicate no search was performed, and the deposition transcript of plaintiff. As required on this sort of motion, defendants provide approximately 50 facts they contend are "undisputed" and "material" in their SSUMF.

Plaintiff opposes the motion, arguing defendants have not shown the release's scope encompasses her claims related to post-collision officer misconduct. Plaintiff also argues the defendants fail to show her claims lack merit, responding to the SSUMF and identifying multiple facts as "disputed." In support of her "disputes" related to the release here, she cites her own declaration concerning lack of any intent to release all claims.

III. Evidentiary Matters

Defendants seek judicial notice of plaintiff's Complaint filed on December 8, 2023 in Case Number C23-03107. The request is unopposed and is **granted**.

With the reply, defendants raise objections to plaintiff's evidence in support of the Opposition. The objections are **sustained**.

IV. Standard

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating a complete defense to plaintiff's action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to the defense. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Discussion

A. Defendants Meet Their Initial Burden

Defendants' motion posits that the settlement agreement is a complete defense to this action. Plaintiff argues the defendants do not meet their initial burden because there are factual questions as to what was intended by the terms of that document.

"A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal. App. 4th 793, 810-11, citation omitted.) "[T]he validity of the settlement agreement is to be judged by the same legal principles applicable to contracts generally." (*Timney v. Lin* (2003) 106 Cal. App. 4th 1121, 1128.) "When a dispute arises over the meaning of contract language, the first question to be decided is whether the language is 'reasonably susceptible' to the interpretation urged by the party. If not, the case is over. If the court decides the language is reasonably susceptible to the interpretation urged, the court moves to the second question: what did the parties intend the language to mean?" (*People ex rel. Lockyer v. R.J. Reynolds Tobacco Co.* (2003) 107 Cal.App.4th 516, 524, hereinafter "*Lockyer*".)

"A contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (*Lockyer*, supra, 107 Cal.App.4th at 525, citing Civ. Code, § 1636.) The language of a contract determines the intention of the parties and thus governs the interpretation of the contract, if the language is clear and explicit, and does not involve an absurdity. (*Lockyer*, supra, 107 Cal.App.4th at 525, citing Civ. Code, §§ 1638-1639; see also 1 Witkin Summary of Cal. Law (11th ed. 2017) Contracts, § 116 ["The outward manifestation or expression of consent is controlling. In other words, mutual consent is gathered from the reasonable meaning of the words and acts of the parties, and not from their unexpressed intentions or understandings"].)

There also can be no real dispute that the contract language was clear and unambiguous with respect to the scope of the release, which stated plaintiff "hereby releases and forever discharges Donnie Thomas [...] from any and all claims [...] whether now known or unknown, arising out of an accident or occurrence on Monday, December 13, 2021, at or near Brentwood, California [...]." The release noted that it "extends to all claims of any kind" and that Officer Thomas was entitled to use the release "as a complete defense to any claim or suit by or on behalf of the Claimant." The release further quoted Civil Code section 1542 in stating that even unknown claims were being waived.

Plaintiff's offered interpretation—that the "all claims" language does not mean "all claims"—would be an absurdity. The authorities she cites are readily distinguished. Plaintiff cites *Claxton v. Waters* (2004) 34 Cal.4th 367, a case that addressed preprinted *mandatory* forms used in settlement of worker's compensation claims. (*Id.* at 371 [noting settlement form was mandatory].) Plaintiff's pin citation in the opposition brief refers to the dissenting opinion (at page 383). The majority's analysis in that case ended a judicially created exception to the parol evidence rule in workers' compensation settlements. (*Id.* at 377.) The authority is specific to the worker's compensation context.

Plaintiff also cites a case relied on in defendants' moving papers, *Jefferson v. Department of Youth Authority* (2002) 28 Cal.4th 299, 306-307 for the rule that Civil Code section 1542 requires a factual showing that the parties intended to settle unknown claims. This case is entirely unhelpful to plaintiff here because in *Jefferson*, the factual showing *was* made since parties there had "added a typed attachment to their compromise and release, quoting section 1542 and also stating, 'this release will apply to all unknown and unanticipated injuries . . . and all rights under Section 1542 . . . are hereby expressly waived.'" (*Id.* at 307.)

The California Supreme Court held that, though a separate FEHA action was not for "unknown" or "unanticipated" injuries, the addition of section 1542 language established unambiguously that the parties intended the release to cover all possible civil claims. The court noted plaintiff did not "explain why a generic attachment should carry less weight in this context than a custom-made one. For our purposes, the critical points are that the parties incorporated the attachment into their compromise and release agreement and that it clearly establishes their intent

to include civil claims within the scope of their settlement.” (*Ibid.*)

Plaintiff here represented that she knew the scope of the release and is bound to that representation. She acknowledged that she read the agreement and “fully underst[ood]” its “intent and purpose.” Plaintiff further represented that she had been given the opportunity to consult with counsel (the evidence reflects she was, in fact, represented by counsel) and that she was presented with “an adequate opportunity” to “consider the agreement and its consequences.”

“The general rule is that when a person with the capacity of reading and understanding an instrument signs it, [s]he is, in the absence of fraud and imposition, bound by its contents, and is estopped from saying that its provisions are contrary to his intentions or understanding” (*Edwards v. Comstock Insurance Co.* (1988) 205 Cal.App.3d 1164, 1167.) In other words, “one party is not permitted to escape from its obligation by showing that he did not intend to do what his words bound him to do.” (*Crow v. P.E.G. Construction Co.* (1957) 156 Cal.App.2d 271, 278.)

Because vicarious liability is the only theory alleged against the State, it too is entitled to rely on the settlement agreement as a complete defense. Defendants have met their initial burden to show entitlement to judgment as a matter of law.

B. Plaintiff’s Evidence Does Not Raise Material Factual Disputes

Many of plaintiff’s purported disputes regarding the facts are not true disputes. For example, plaintiff asserts a dispute to Facts 16 and 17 in the basis that Officer Thomas’ self-serving declaration is the only evidence for when and why he arrived at the scene, but also admits she has no personal knowledge about this fact or whether Ms. Thomas called him. Other purported disputes are only to the “implications” or “characterizations” plaintiff contends are raised (e.g., Fact Nos. 18-19, 22-23), or to the “completeness” of the facts to which she seeks to add context (e.g. Fact No. 21). In any event, none of the purported disputes are material to the grounds for summary judgment here.

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Summary judgment is warranted here and the Court need not proceed to analyze the issues presented for summary adjudication.

5. 9:00 AM CASE NUMBER: C23-02721
CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC
***HEARING ON MINOR'S COMPROMISE RE: MAYORI RIVAS**
FILED BY: ESCOBAR , MATIAS RIVAS
TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Mayori Rivas’s (“Minor”) Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC (“Petition”). For the reasons stated below, the Court **grants** the Petition.